

# Legal Principles of Computer Forensics

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## Computing and Mathematics

May, 2026



# Legal Principles of Computer Forensics (A14171)

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|---------------------|------------------------------|----------------------------|
| <b>Short Title:</b> | Legal Prin of Comp Forensics |                            |
| <b>Faculty</b>      | Science and Computing        |                            |
| <b>Department</b>   | Computing and Mathematics    |                            |
| <b>Cluster</b>      | Forensics and Security       |                            |
| <b>Author</b>       | JSHEPPARD                    |                            |
| <b>Credits</b>      | 5                            | <b>Level:</b> Introductory |

## Description of Module / Aims

This module aims to enable students to gain a detailed knowledge and understanding of the Irish Legal System along with a clear and concise account of the fundamental principles of computer forensics law. As part of their studies, students will gain a detailed knowledge and understanding of the general principles of many diverse areas of law that apply to computer forensics. Students will gain a detailed knowledge of Criminal Law, especially as it relates to Computer Forensics. The various computer based criminal offences pursuant to legislation will be analysed. This module will also aim to enable students to study and demonstrate competence in the relevant rules of evidence with particular emphasis on gathering electronic evidence. The use and admissibility of electronic evidence in proceedings. The legal responsibilities placed on forensic investigators during the conduct of their investigation. This module will also ensure that students may confidently handle, analyse and apply Domestic, English, EU and USA Law to Computer Forensics and enable students to evaluate the role of the law and legal policy to the dynamic and rapidly changing world of Computer Forensics.

## Programmes

|           |                                                            |           |
|-----------|------------------------------------------------------------|-----------|
| LAWS-0001 | BSc (Hons) in Applied Computing (WD_KACCM_B)               | 3 / 5 / E |
| LAWS-0001 | BSc (Hons) in Applied Computing (WD_KCOMP_B)               | 3 / 5 / E |
| LAWS-0001 | BSc (Hons) in Computer Forensics and Security (WD_KCOFO_B) | 3 / 5 / M |
| LAWS-0001 | BSc (Hons) in Computer Science (WD_KCMSC_B)                | 3 / 5 / E |

## Indicative Content

- Introduction to the Irish Legal System
- Cybercrime
- Laws of Evidence
- E-Discovery in Ireland
- Data Protection
- Data Retention
- Money Laundering
- Strict Liability
- Mens Rea
- Principles of Criminal Liability
- Garda, Revenue & Bureaus
- Criminal Assets Bureau & the Proceeds of Crime
- Offences under the Criminal Damage Act 1991

## Learning Outcomes

*On successful completion of this module, a student will be able to:*

1. Discuss the various principles that make up the jurisprudence relating to the Legal Principles of Computer Forensics and will be able to articulate their understanding in class.
2. Demonstrate sound techniques of legal reasoning and analysis; for example students will be able to apply legal principles of Criminal Law to complex real life criminal/legal situations such as Offences under the Criminal Damage Act 1991.
3. Demonstrate sound techniques in dealing with Irish, English, EU and USA legal and quasi legal materials, especially in interpretation and application of those materials.
4. Deal with conceptual theories and concepts underpinning the new jurisprudence of Legal Principles of Computer Forensics; for example students will draw on their knowledge gained in this subject and apply it to new developing situations such as computer crime.
5. Collect information from primary sources (e.g. law reports and relevant legislation) and non-traditional sources (e.g. WWW) and apply it to problem situations.

## Learning and Teaching Methods

- This module will be presented by a combination of lectures and practicals.
- The lectures will be used to introduce new topics and their related concepts.
- The practical element allows the student to put into practice the theoretical concepts covered in the lectures.

## Assessment Methods

|                       | Weighing | Outcomes Assessed |
|-----------------------|----------|-------------------|
| Continuous Assessment | 100%     |                   |
| Assignment            | 100%     | 1,2,3,4,5         |

## Assessment Criteria

**<40%:** Unable to demonstrate a basic understanding of the legal principles of computer forensics Law.

**40%-49%:** Average demonstration of the above criteria, yet lacking the insight and critique to demonstrate the students fluency with relevant theory and legal principles.

**50%-59%:** All of the above and in addition an attempt at criticism and insight. Attempt to demonstrate the applicability of the relevant principles.

**60%-69%:** In addition, very good attempt at critiquing and demonstrating the reform and tensions in the area in a clear and logical structure.

**70%-100%:** All of the above at an exceptional level meeting and excelling at all the criteria.

## Learning Modes

| Learning Mode        | F/T Hours | P/T Hours |
|----------------------|-----------|-----------|
| Lecture              | 24        |           |
| Tutorial             | 24        |           |
| Independent Learning | 87        |           |

## Essential Material

- "Irish Statute Book." <http://www.irishstatutebook.ie/>
- Hanley, C. \_An Introduction to Irish Criminal Law\_. Ireland: Gill & MacMillian, 2013.
- McGrath, D. \_Evidence\_. Dublin : Roundhall, 2014.

## Supplementary Material

- "Data Protection." <https://www.dataprotection.ie/>
- Llyod, I. \_Information Technology Law\_. London : Oxford, 2014.